

KALER NAIROBI WELFARE ASSOCIATION

CONSTITUTION AND RULES

1. NAME

The name of the society shall be **KALER NAIROBI WELFARE ASSOCIATION** (In the constitution referred as “**the society**”).

2. VISION

Economic empowerment for better health and progress to the members

3. MISSION

Eradication of poverty through community empowerment.

4. OBJECTIVES

- a) Fundraising for development projects
- b) To help people who are sick and in case of death
- c) To utilize the opportunities availed by financial institutions, CBOs, NGCDF and other partners for the general benefit of the society.
- d) Job creation through business setups and provisions of start-up capital to women and youth.
- e) Empower youths through counselling, career choices, and talent identification and guidance.
- f) Nurture a well-managed group that can be viewed as a model for bench marking by other upcoming groups.

5. MEMBERSHIP

- a) Any **member** over the age of **18 years** shall be eligible for membership of the society and shall, subject to approval of the committee, become a member on payment of registration fee of **Ksh.200**.
- b) Every member shall pay annual subscription of **Ksh.200** not later than 28th day of February. Late payments shall attract **50%** penalty of the arrears for the first six month after which article 5(f) applies.
- c) Any member desiring to resign from the society shall submit his resignation to the secretary, which shall take effect from the date of receipt by the secretary of such notice.
- d) Any member maybe expelled from membership if the committee so recommends and if a general meeting of the society shall resolve by a two-thirds majority of the members present that such member should be expelled on the grounds that his conduct has adversely affected the reputation or dignity of the society, or that he/she has contravened any of the provisions of the constitution of the society. The committee shall have power to suspend a member from his membership until the next general meeting of the society following such suspension but notwithstanding such suspension a member whose expulsion is proposed shall have the right to address the general meeting at which his expulsion is to be considered.
- e) Any person who resigns or is removed from membership shall not be entitled to a refund of his/her subscription or any part thereof or any moneys contributed by him at any point.
- f) Any member who falls into arrears with his/her annual subscription for more than six months shall automatically cease to be a member of the society and his name shall be struck off the register of members. The committee may, however, at its discretion, reinstate such a member on payment of the total amount of subscription and fines outstanding.
- g) Any member who has a visitor intending to stay for more than **two weeks** shall notify the office. After **Three months** of stay the visitor should register as a member as indicated in article 5(a) and (b).
- h) Any member who has a visitor who has come to seek medical attention to notify the association **immediately** and this shall be treated as a special case. The visitor shall not abide with article 5(a), 5(b) and 5(g).

6. STUDENTS

- a) A student is anybody above 18 years old but still under the care of his/her parents/guardian.
- b) A student shall pay registration fee and annual subscriptions as in article 5(a) and (b), and he/she is not eligible to pay funeral and any other contributions.

7. WOMEN

- a) Any woman whose husband is a live member shall be eligible for membership as in article 5(a) and (b), and shall be exempted from funeral and any other contributions.
- b) Any woman whose husband is not a member of the society or has passed on and would like to be a member shall be eligible for membership as in article 5(a) and (b) and shall participate in all the contributions of the society.
- c) Women shall hold their own meetings chaired by the women representative in the executive committee who will submit the minutes to the committee, however, they shall attend the AGM.
- d) In case of separation or divorce, the husband should notify the welfare and if the woman decides to continue being a member, article 5(a) and (b) applies to her after consultation with the husband.

8. OFFICE BEARERS

- a) The office bearers of the society shall be:-

- I. The chairperson
- II. The vice chairperson
- III. The secretary
- IV. The assistance secretary
- V. The treasurer
- VI. Organization secretary
- VII. Women representative
- VIII. Branch representative

All of whom shall be fully paid-up members of the society and shall be elected at the annual general meeting.

- b) The office bearers shall hold the office for a period of **two years** from the date of election until the succeeding by annual general meeting subject to the conditions in article 9 of this constitution but shall be eligible for re-election.

- c) Any office bearer who ceases to be a member of the society shall automatically cease to be an office bearer thereof.
- d) Office bearers may be removed from the office in the same way as is laid down for the expulsion of members in rule 5(d) and vacancy thus created shall be filled by person elected at the general meeting resolving the expulsion.
- e) The students are not eligible to be office bearers.
- f) The office bearer shall be eligible to hold the same position for a maximum of two terms **(4 years)** after which he is eligible for re-election but in a different position.

9. DUTIES OF OFFICE BEARERS

- a) Chairperson- The chairperson shall, unless prevented by illness or other sufficient cause, preside over all meetings of the committee and at all general meetings.
- b) Vice chairperson- The vice-Chairperson shall perform any duties of the chairperson in his/ her absence.
- c) Secretary- The secretary shall deal with all the correspondence of the society under the general supervision of the committee. In case of urgent matters where the committee cannot be consulted, he/ she shall consult the chairperson or if he/ she is not available, the vice- chairperson. The decisions reached shall be subject to ratification or otherwise at the next committee meeting. He shall issue notices convening all meetings of the committee and all general meetings of the society and shall be responsible for keeping minutes of all such meetings and for the preservation of all records of proceedings of the society and of the committee.
- d) Assistant secretary – In the absence of the Secretary, the assistant secretary shall perform all the duties of the secretary and such other duties as shall be assigned to him by the secretary or committee whether the secretary is not present or not.
- e) Treasurer – The treasurer shall receive and shall also disburse, under the directions of the committee, all moneys belonging to the society and shall issue receipts for all moneys to the committee and to the members that proper books of account of all money's received and paid by the society are written up, preserved and available for inspection.
- f) Assistant Treasurer – The assistant treasurer shall perform such duties as may be specifically assigned to him or her by the treasurer or by the committee and in the absence of the treasurer shall perform the duties of the treasurer.
- g) Women rep – The women rep shall be the chair lady in the women meeting, and shall provide the minutes of their meetings to the committee.

- h) Branch rep – The branch reps shall act as a link between the committee and the members and he/ she shall be the custodian of all records. He / she shall be the chairperson of the branch he or she represents.
- i) Organizing secretary – The organizing secretary shall be responsible for helping the committee to plan the activities of the society. He/ she is accountable for setting up the meeting place, the equipment, materials needed for the meeting and purchasing any additional items for the meeting. He / she shall be responsible for writing the thank you letter to anybody who the society invite in meeting as their guest.

10. ELECTIONS

Elections shall be held on the **1st Sunday of March** after every two years (**bi- annually**).

11. SIGNATORIES

- a) The signatory of the society bank account(s) shall be:
 - 1. The chairperson
 - 2. The treasurer
 - 3. The secretary
- b) The mandate of the bank shall be any two to sign

12. COMMITTEE

- a) The committee shall consist of all the office bearers of the society: such committee members shall hold the office until the following by annual general meeting. The committee shall meet at such time and places as it shall resolve but shall meet not less than **once in every 3 months**.
- b) Any casual vacancies for members of the committee caused by death or resignation shall be filled by a member the committee until the next general meeting of the society. Vacancies caused by members of the committee removed from the office will be dealt with as shown in article 8(d).

13. DUTIES OF THE COMMITTEE

- (a) The committee shall be responsible for the management of the society and for that purpose may give directions to the office bearers as to the manner in which, within the law, they shall perform their duties. The committee shall have power to appoint such sub-committees as it may deem desirable.

- (b) All moneys disbursed on behalf on behalf of the society shall be authorized by the committee except as specified in rule 18(d).
- (c) The quorum for meetings of the committee shall not be less than 7 members.

14. GENERAL MEETINGS

a) There shall be **Three** classes of general meetings-

1. Annual general meetings
2. Bi-Annual General meetings and
3. Special general meetings

(b) Annual General Meeting (AGM)

(b) (I) the annual general meeting shall be held not later than the **third month** of the year at a central place. Notice in writing of such annual general meetings, accompanied by the annual statement of account (see rule 17{b)) and the agenda for the meeting shall be sent to all members not less than 21 days before the date of the meeting and, where applicable, by press advertisement not less than 14 days before the date of the meeting.

(II) The agenda for any annual general meeting shall consist of the following:

- (a) Confirmation of the minutes of the previous annual general meeting.
- (b) Consideration of the accounts.
- (c) Such other matters as the committee may decide or members to notice shall have been in writing by a member or members to secretary at least four weeks before the date of the meeting.
- (d) Any other business with the approval of the chairman.

(c) Bi-Annual General meetings

(C) (I) the bi-annual general meeting shall be held on the **first Sunday of March** of year at a central place. Notice in writing of such annual general meetings, accompanied by the annual statement and bi-annual statement of account(see rule 17{b)) and the agenda for the meeting shall be sent to all members not less than 21 days before the date of the meeting and, where applicable, by press advertisement not less than 14 days before the date of the meeting.

(II) The agenda for any annual general meeting shall consist of the following:

- (a) Confirmation of the minutes of the previous annual general meeting.
- (b) Consideration of the accounts.

(c) Elections of office bearers (and trustees where necessary in accordance with article 10.

(d) Appointment of Auditors in accordance with rule 17 (a).

(c) Such other matters as the committee may decide or members to notice shall have been in writing by a member or members to secretary at least four weeks before the date of the meeting.

(d) Any other business with the approval of the chairman.

(d) A special general meeting

(a) A special general meeting shall be held quarterly rotational in the branches.

(b) A special general meeting may be called for any specific purpose by the committee. Notice in writing of such meeting shall be sent to all members not less than 7 days before the date thereof and where applicable by press advertisement not less than 7 days before the date of such meeting.

(c) A special general meeting may also be requested for a specific purpose by order in writing to the secretary of not less than **a third of the members** and such meetings shall be held with 21 days of the date of the requisition. The notice for such meeting shall be as shown in rule 14(d) sub-article(b) and no matter shall be discussed other than that stated in the requisition.

(d) Quorum for general meetings shall be not less than half of the registered members of the society.

15. PROCEDURE AT MEETINGS

(a) At all meetings of the society the chairperson, or in his absence, the vice chairperson, or in the absence of both these officers, a member selected by the meeting shall take the chair.

(b) The chairman may at his discretion limit the number of persons permitted to speak in favor of and against any motion.

(e) Resolutions shall be decided by simple voting a show of hands or by secret ballot. In the case of equality of votes, the Chairman shall have a second or casting vote.

16. TRUSTEES

(a) All land, buildings and other immovable property and all investments and securities which shall be acquired by the society shall be vested in the names of not less than **Three** Trustees who shall be members of the society and shall be appointed at an annual general meeting for a period of **Four** years. On retirement such trustees shall be eligible for re-election. A general meeting shall have the power to remove any of the trustees and all vacancies occurring by removal, resignation or death, shall be filled at the same or next general meeting.

(b) The trustees shall pay all income received from property vested in the trustee to the Treasurer. Any expenditure in respect of such property which in the opinion of the trustees is necessary or desirable shall be reported by the trustees to the committee which shall authorize expenditure of such moneys as it thinks fit.

17. AUDITOR

(a) An auditor shall be appointed for the following two years by the annual general meeting. All the society's accounts, records and documents shall be opened to the inspection of the auditor at any time. The treasurer shall produce an account of his receipts and payments and a statement of assets and liabilities made up to a date which shall not be less than six weeks and not more than three months before the date of annual general meetings. The auditor shall examine such annual accounts and statements and either clarify that they are correct, duly vouched and in accordance with the law or report to the society in what respect they are found to be incorrect, unvouched or not in accordance with the law.

(b) A copy of the auditor's report on the accounts and statements together with such accounts and statements shall be furnished to all members at the same time as the notice convening the annual meeting is sent out. An auditor may be paid such honorarium for his duties as may be resolved by the annual general meeting appointing him/her.

(c) No auditor shall be an office bearer or a member of the committee of the society.

18. FUNDS

- (a)
 - (i) To start any development project.
 - (ii) In funeral expenses.
 - (iii) e.t.c
- (b) All moneys and funds shall be received and deposited with the bank in the name of the society in any bank or banks approved by the committee and all receipts handed over to the treasurer within **THREE** days for the treasurer to make entries necessary for proper accounting.
- (c) No payments shall be made out of the bank account without a resolution of the committee authorizing such payment and all cheques on such bank account shall be signed by the Treasurer, Chairperson and secretary and only in the absence of one of the aforementioned, shall the fourth signatory sign as a third signatory.
- (d) A sum not exceeding **Sh. 3000** may be kept by the treasure for petty disbursements of which proper accounts shall be kept.
- (e) The committee shall have power to suspend any office bearer who it has reasonable cause to believe is not properly accounting for any of the funds or property of the society and shall have power to appoint another person in his place. Such suspension shall be reported to a general meeting to be convened on a date not later than two months from the date of such suspension and the general meeting shall have full power to decide what further action should be taken in the matter.
- (f) The financial year of the society shall be from **1st January to 31st December**. And all members shall have a pass book for individual contribution and other transaction entry.
- (g) A fine of **Ksh.100** shall be imposed on an ordinary member who fails to attend any scheduled without apology. But failing to attend with apology shall attract a fine of **sh.50**.
- (h) A fine of **sh. 200** shall be imposed on any committee member who fails to attend any scheduled meeting without apology and a fine of **Ksh.100** for committee member who fails with apology.
- (i) Apology should be forwarded to the Secretary or to the branch representatives at least **TWO** days to the scheduled meeting.
- (j) A fine of **Ksh.50** shall be imposed on any official member for lateness and a fine of **Ksh. 20** on any ordinary member for lateness.

(k) **Funeral Preparatory Fund (FPF):** Every member shall deposit with the society an amount equivalent to **TWO** funeral contributions which can be used to pay for a member in case a member is unable to pay due to lack of funds or if a member is away.

(l) **Development Fund:** There shall be a development fund where **ALL** members of the society **shall automatically** be a shareholder by buying shares as maybe be stipulated by the society.

19. FUNERAL

- a) In case of death of any member as in article 5(a) and (b). members shall contribute a sum of **Ksh.1,500** each.
- b) If a member loses his child under the age of 18, a student as in article 6(a), his wife as in article 7(a) outside Migori County, members shall contribute a full amount of **Ksh.1,500** each.
- c) If a member loses his child under the age of 18, a student as in article 6(a), his wife as in article 7(a) within Migori County, members shall contribute half of the full amount (**Ksh.750**) each.
- d) Failure by a member to pay full funeral contribution in at least **TWO** consecutive funerals shall automatically cease to be a member regardless of article 5(b) and his/her name shall be struck off the register of members. The committee may however reinstate such a member on payment of the funeral arrears and at least one FPF of **Ksh.1,500**.
- e) Funeral arrears should be cleared within **TWO** months from the date of death.
- f) Funeral contributions should be concluded before 14 days after the date of death. The society shall take charge of the mortuary expenses up to the 14th day after the date of death.
- g) The belongings of the deceased shall be taken home together with the body as maybe decided by the family members. However, if the society may not be able to facilitate the same, they should be taken within **Two** months.

20. BRANCHES

Branches of the society may be formed with the approval of the committee and the registrar of the Societies and they will adopt the same constitution as that of the headquarters with the following exceptions:

- (a) The aims and objectives will not include the formation of branches.

(b) Amendments to the constitution can only be made by the headquarters of the society in accordance with the provisions of article 21.

(c) The provisions of article 22 shall apply to branches but, in addition, branches will not be dissolved without consultation with their headquarters.

21. AMENDMENTS TO THE CONSTITUTION

Amendments to the constitution of the society must be approved by at least two thirds of majority of members at a general meeting of the society. They cannot, however, be implemented without the prior consent in writing of the Registrar, obtained upon application to him made in writing and signed by three of the office bearers.

22. DISSOLUTION

(a) The society shall not be dissolved except by a resolution passed at a general meeting of members by a vote of at least two thirds of the members present. The quorum at the meeting shall be as shown in rule 14(e). If no quorum is obtained, the proposal to dissolve the society shall be submitted to a further general meeting which shall be held one month later. Notice of this meeting shall be given to all members of the society at least 14 days before the date of the meeting. The quorum of this meeting shall be the number of members present.

(b) Provided, however, that no dissolution shall be effected without prior permission in writing of the Registrar, obtained upon application to him/her made in writing and signed by three of the office bearers.

(c) When the dissolution of the society has been approved by the Registrar, no further action shall be taken by the committee or any office bearer of the society in connection with the aims of the society other than to get in and liquidate for cash all assets of the society. Subject to the payment of all the debts of the society, the balance thereof shall be distributed in such other manner as may be resolved by the meeting at which the resolution for dissolution is passed.

23. INSPECTION OF ACCOUNTS AND LIST OF MEMBERS.

The books of account and all documents relating thereto and a list of members of the society shall be available for inspection at the registered office of the society by any officer or member of the society on giving not less than seven days' notice in writing to the society.